

SENATE FLOOR VERSION

February 25, 2025

SENATE BILL NO. 1118

By: Howard

An Act relating to judicial retirement; mandating retirement of certain judicial officers upon certain age; authorizing completion of certain term; authorizing certain retirement benefits; prohibiting election, retention, or appointment of certain persons; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1407 of Title 20, unless there is created a duplication in numbering, reads as follows:

A. As authorized pursuant to subsection (c) of Section 11 of Article VII of the Oklahoma Constitution, a Justice of the Supreme Court, a Judge of the Court of Criminal Appeals or of the Court of Civil Appeals, or a district or associate district court judge shall retire when he or she reaches seventy-five (75) years of age; provided, however, such appellate Justice or Judge or district or associate district court judge may complete the term during which he or she turns seventy-five (75) years of age if he or she chooses to complete such term. Upon retiring, each such appellate Justice or

1 Judge or district or associate district court judge shall receive
2 retirement benefits as provided by law.

3 B. An appellate Justice or Judge or district or associate
4 district court judge who has reached seventy-five (75) years of age
5 on or before the effective date of this act shall retire on the
6 effective date of this act; provided, however, such appellate Justice
7 or Judge or district or associate district court judge may complete
8 the term during which this act was enacted if he or she chooses to
9 complete such term. Upon retiring, each such appellate Justice or
10 Judge or district or associate district court judge shall receive
11 retirement benefits as provided by law.

12 C. No person shall be eligible for election, retention, or
13 appointment to any appellate or district court who has reached
14 seventy-five (75) years of age prior to or on the date of election
15 or appointment.

16 SECTION 2. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
18 February 25, 2025 - DO PASS
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